

The Court-Fees (Assam Amendment) Act, 1972

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[The Court-Fees \(Assam Amendment\) Act, 1972](#)

[ASSAM](#)

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[The Court-Fees \(Assam Amendment\) Act, 1972](#)

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[The Court-Fees \(Assam Amendment\) Act, 1972](#)

[Assam Act](#)

[No. 27 of 1972](#)

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[An Act further to amend the Court-Fees Act, 1870 in its application to Assam.](#)

[Preamble. - Whereas it is expedient further to amend the Court-Fees Act, 1870 \(Act 7 of 1870\), hereinafter called the Principal Act, in its application to Assam, in the manner hereinafter appearing;](#)

[It is hereby enacted in the Twenty-third Year of the Republic of India as follows:-](#)

[1.](#)

Short title, extent and commencement.

(1)

This Act may be called the Court-Fees (Assam Amendment) Act, 1972.

(2)

It extends to the whole of Assam.

(3)

It shall come into force on such date as the State Government may, by notification in the Official Gazette, appoint.

2.

Amendment of Schedule I of Act 7 of 1870.

- In Schedule I to the Principal Act,-

(1)

for Article 1, the following shall be substituted, namely:-

Number

Proper fee

(1)

(2)

(3)

"I.

Plaint, written statement pleading a set-off or counter-claim or memorandum of appeal (not otherwise provided for in this Act, or of cross-objection presented to any Civil or Revenue Court except those mentioned in Section 3

When the amount or value of the subject-matter in dispute does not exceed one hundred rupees, for every five rupees or part thereof of such amount or value.

Fifty-five paise

and

When such amount or value exceeds one hundred rupees, for every ten rupees or part thereof, in excess of one hundred rupees up to one hundred and fifty rupees

One rupees and ninety-five paise.

and

When such amount or value exceeds one hundred and fifty rupees, for every ten rupees, or part thereof up to one hundred rupees

One rupees and forty paise.

and

When such amount or value exceeds one thousand rupees, for every one hundred rupees, or part thereof in excess of one thousand rupees up to seven thousand five hundred rupees

Eight rupees and twenty-five paise

and

When such amount or value exceeds seven thousand five hundred rupees, for every two hundred and fifty rupees, or part thereof, in excess of seven thousand five hundred rupees up to ten thousand rupees

Sixteen rupees and fifty paise

and

When such amount or value exceeds ten thousand rupees, for every five hundred rupees, or part thereof, in excess of ten thousand rupees, up to twenty thousand rupees

Twenty-four rupees and seventy-five paise
and

When such amount or value exceeds, twenty
thousand rupees, for every one thousand rupees, or part thereof,
in excess of twenty thousand rupees up to fifty thousand rupees
Thirty-three rupees

and

When such amount or value exceeds fifty
thousand rupees, for every five thousand rupees, or part thereof
in excess of fifty thousand rupees:

Forty-one rupees and twenty-five paise

Provided that maximum fee leviable on a plaint
or memorandum of appeal shall not exceed eleven thousand
rupees".

(2)

for Articles 6, 7, 8 and 9 the following shall be substituted, namely :-
"6.

Copy or translation of a judgment or order not
being or having the force of a decree

When such judgment or order is passed by any
Civil Court other than High Court, or by the Presiding Officer of
any Revenue Court or officer or by any other Judicial or
Executive Authority:

(a) if the amount or value of the subject-matter
is fifty or less than fifty rupees

One rupee and ten paise

(b) if such amount or value exceeds fifty rupees

Two rupees and twenty paise

(c) when such judgment or order is passed by a
High Court

Four rupees and forty paise

7.

Copy of a decree or order having the force of a
decree

When such decree or order is made by any Civil
Court other than a High, Court, or by any Revenue Court-

(a) if the amount or value of the subject-matter
of the suit wherein such decree or order is made is fifty or less
than fifty rupees

Two rupees and twenty paise

(b) if such amount or value exceeds fifty rupees

Three rupees and thirty paise

(c) when such decree or order is made by High
Court

Eight rupees and twenty-five paise

8.

Copy of any document liable to stamp-duty under
the Indian Stamp Act, 1899 (Act 2 of 1899), when left by any
party to a suit or proceeding in place of the original withdrawn

(a) when the stamp-duty chargeable on the
original does not exceed one rupee

The amount of the duty chargeable on the original.

(b) in any other case

One rupee and twenty paise.

9.

Copy of any revenue or judicial proceeding or order not otherwise provided for by this Act, or copy of any account, statement, report or the like, taken out of any Civil or Criminal or Revenue Court or office or from the office of any Chief Officer charged with the executive administration of Division.

For every three hundred and sixty words or

fraction of three hundred and sixty words

One rupee and twenty-paise".

(3)

the table of rates of ad valorem fees leviable on the institution of suits at the end shall be substituted by the following:-

The Schedule

Table of rates of ad valorem fees leviable on the institution of suits

[See Section 4 of the Assam Court-Fees (Amendment) Act, 1958]

When the amount or value of the subject-matter

exceeds

But does not exceed

Proper fee

(1)

(2)

(3)

Rs.

Rs.

Rs. Np.

...

5

0.55

5

10

1.10

10

15

1.65

15

20

2.20

20

25

2.75

25

30

3.30

30

35

3.85

35

40

4.40
40
45
4.95
45
50
5.50
50
55
6.05
55
60
6.60
60
65
7.15
65
70
7.70
70
75
8.25
75
80
8.80
80
85
9.35
85
90
9.90
90
95
10.45
95
100
11.00
100
110
12.95
110
120
14.85
120
130
16.80
130
140
18.70
140
150

20.65
150
160
21.25
160
170
23.30
170
180
24.60
180
190
25.90
190
200
27.25
200
210
28.55
210
220
29.90
220
230
31.20
230
240
32.50
240
250
33.85
250
260
35.15
260
270
36.50
270
280
37.80
280
290
39.15
290
300
40.45
300
310
41.75
310
320

43.10
320
330
44.40
330
340
45.75
340
350
47.05
350
360
48.35
360
370
49.70
370
380
51.00
380
390
52.35
390
400
53.65
400
410
54.95
410
420
56.30
420
430
57.60
430
440
58.95
440
450
60.25
450
460
61.55
460
470
62.90
470
480
64.20
480
490

65.55
490
500
66.85
500
510
68.15
510
520
69.50
520
530
70.80
530
540
72.15
540
550
73.45
550
560
74.75
560
570
76.10
570
580
77.40
580
590
78.75
590
600
80.05
600
610
81.35
610
620
82.70
620
630
84.00
630
640
85.35
640
650
86.65
650
660

87.95
660
670
89.30
670
680
90.60
680
690
91.95
690
700
93.25
700
710
94.55
710
720
95.90
720
730
97.20
730
740
98.55
740
750
99.85
750
760
101.15
760
770
102.50
770
780
103.80
780
790
105.15
790
800
106.45
800
810
107.75
810
820
109.10
820
830

110.40
830
840
111.75
840
850
113.05
850
860
114.35
860
870
115.70
870
880
117.00
880
890
118.35
890
900
119.65
900
910
120.95
910
920
122.30
920
930
123.60
930
940
124.95
940
950
126.25
950
960
127.55
960
970
128.90
970
980
130.20
980
990
131.50
990
1,000

132.85
1,000
1,100
141.40
1,100
1,200
142.35
1,200
1,300
157.60
1,300
1,400
165.85
1,400
1,500
174.10
1,500
1,600
182.35
1,600
1,700
190.60
1,700
1,800
191.85
1,800
1,900
207.10
1,900
2,000
215.35
2,000
2,100
223.60
2,100
2,200
231.85
2,200
2,300
240.10
2,300
2,400
248.35
2,400
2,500
256.60
2,500
2,600
264.85
2,600
2,700

273.10
2,700
2,800
281.35
2,800
2,900
289.60
2,900
3,000
297.85
3,000
3,100
306.10
3,100
3,200
314.35
3,200
3,300
322.60
3,300
3,400
330.85
3,400
3,500
339.10
3,500
3,600
347.35
3,600
3,700
355.60
3,700
3,800
363.85
3,800
3,900
372.10
3,900
4,000
380.35
4,000
4,100
388.60
4,100
4,200
369.85
4,200
4,300
405.10
4,300
4,400

413.35
4,400
4,500
421.60
4,500
4,600
429.85
4,600
4,700
438.10
4,700
4,800
446.35
4,800
4,900
454.60
4,900
5,000
462.85
5,000
5,100
471.10
5,100
5,200
479.35
5,200
5,300
487.60
5,300
5,400
495.85
5,400
5,500
504.10
5,500
5,600
512.35
5,600
5,700
520.60
5,700
5,800
528.80
5,800
5,900
537.10
5,900
6,000
545.35
6,000
6,100

553.60
6,100
6,200
561.85
6,200
6,300
570.10
6,300
6,400
578.35
6,400
6,500
586.60
6,500
6,600
594.85
6,600
6,700
603.10
6,700
6,800
611.35
6,800
6,900
619.60
6,900
7,000
627.85
7,000
7,100
636.10
7,100
7,200
644.35
7,200
7,300
652.60
7,300
7,400
660.85
7,400
7,500
669.10
7,500
7,750
685.60
7,750
8,000
702.10
8,000
8,250

718.60
8,250
8,500
735.10
8,500
8,750
751.60
8,750
9,000
768.10
9,000
9,250
784.60
9,250
9,500
801.10
9,500
9,750
817.60
9,750
10,000
834.10
10,000
10,500
858.85
10,500
11,000
882.60
11,000
11,500
908.35
11,500
12,000
933.10
12,000
12,500
957.85
12,500
13,000
982.60
13,000
13,500
1,007.35
13,500
14,000
1,032.10
14,000
14,500
1,056.85
14,500
15,000

1,081.60
15,000
15,500
1.106.35
15,500
16,000
1,131.10
16,000
16,500
1,155.85
16,500
17,000
1,180.60
17,000
17,500
1,205.35
17,500
18,000
1,230.10
18,000
18,500
1,254.40
18,500
19,000
1,279.60
19,000
19,500
1,304.35
19,500
20,000
1,329.10
20,000
21,000
1,356.10
21,000
22,000
1,395.10
22,000
23,000
1,428.10
23,000
24,000
1,461.10
24,000
25,000
1,494.10
25,000
26,000
1,527.10
26,000
27,000

1,560.10
27,000
28,000
1,593.10
28,000
29,000
1,626.10
29,000
30,000
1,659.10
30,000
31,000
1,692.10
31,000
32,000
1,725.10
32,000
33,000
1,758.10
33,000
34,000
1,791.10
34,000
35,000
1,824.10
35,000
36,000
1,857.10
36,000
37,000
1,890.10
37,000
38,000
1,923.10
38,000
39,000
1,956.10
39,000
40,000
1,989.10
40,000
41,000
2,022.10
41,000
42,000
2,055.10
42,000
43,000
2,088.10
43,000
44,000

2,121.10
44,000
45,000
2,154.10
45,000
46,000
2,187.10
46,000
47,000
2,220.10
47,000
48,000
2,253.10
48,000
49,000
2,286.10
49,000
50,000
2,319.10
50,000
55,000
2,360.35
55,000
60,000
2,401.60
60,000
65,000
2,442.85
65,000
70,000
2,484.10
70,000
75,000
2,525.35
75,000
80,000
2,566.60
80,000
85,000
2,607.85
85,000
90,000
2,649.10
90,000
95,000
2,690.35
95,000
1,00,000
2,731.60
1,00,000
1,05,000

2,772.85
1,05,000
1,10,000
2,814.10
1,10,000
1,15,000
2,855.35
1,15,000
1,20,000
2,896.60
1,20,000
1,25,000
2,937.85
1,25,000
1,30,000
2,979.10
1,30,000
1,35,000
3,020.35
1,35,000
1,40,000
3,061.60
1,40,000
1,45,000
3,102.85
1,45,000
1,50,000
3,144.10
1,50,000
1,55,000
3,185.35
1,55,000
1,60,000
3,226.60
1,60,000
1,65,000
3,267.85
1,65,000
1,70,000
3,309.10
1,70,000
1,75,000
3,350.35
1,75,000
1,80,000
3,391.60
1,80,000
1,85,000
3,432.85
1,85,000
1,90,000

3,474.10

1,90,000

1,95,000

3,515.35

1,95,000

2,00,000

3,556.60

2,00,000

2,05,000

3,597.85

and the fee increases at the rate of forty-one rupees and twenty five paise for every five thousand rupees or part thereof, up to a maximum fee of eleven thousand rupees for example:-

When the amount or value of the subject matter

exceeds

But does not exceed

Proper fee

(1)

(2)

(3)

Rs.

Rs.

Rs. Np

3,00,000

4,381.60

4,00,000

5,206.60

5,00,000

6,031.60

6,00,000

6,856.62

7,00,000

7,681.60

8,00,000

8,506.60

9,00,000

9,331.60

10,00,000

10,981.60

11,05,000

11,022.85

3.

Amendment of Schedule II of Act 7 of 1870.

- For Schedule II to the Principal Act, the following shall be substituted, namely:-

"Schedule II

Fixed Fees

Number

Proper Fee

1.

Application or petition

(a) When presented to any officer of the

Customs or Excise Department or to any Magistrate by any person

having dealings with the Government, and when the subject-matter of such application relates exclusively to those dealings; or

Fifty naye paise

when presented to any Municipal Board or other local authority constituted under any Act for the time being in force for the conservancy or improvement of any place, if the application or petition relates solely to such conservancy or improvement; or

when presented to any Civil Court other than a principal Civil Court of original jurisdiction, or to any Court of Small Causes constituted under Act No. 11 of 1865 or under Act No. 16 of 1868, Section 20 or to a Collector or other officer of revenue in relation to any suit or case in which the amount or value of the subject-matter is less than fifty rupees;

or

when presented to any Civil, Criminal or Revenue Court, or to any Board or executive officer for the purpose of obtaining a copy or translation of any judgment, decree or order passed by such Court, Board or officer, or of any other document on record in such Court or Office

(b) When presented in a Regional Transport Authority or State Transport Authority containing a prayer for permit for Contract Carriage, Stage Carriage, Private Carrier or Public Carrier or for any other purpose

Eight rupees and twenty-five paise

(c) When containing a complaint or charge of any offence other than an offence for which police officer may, under the Criminal Procedure Code, arrest without warrant and presented to any Criminal Court; or when presented to a Civil, Criminal or Revenue Court, or to a Collector or any revenue officer having jurisdiction equal or subordinate to a Collector, or to any Magistrate in his executive capacity, and not otherwise provided for by this Act, or to deposit in Court as revenue or rent; or

In the case of a complaint or charge of an offence presented to a criminal court or in the case of an application or petition presented to any officer of land revenue by any person holding temporarily settled land under direct engagement with Government, and when the subject-matter of the application or petition relates exclusively to such engagement one rupee and sixty-five paise and in other case one rupee and ten paise.

for determination by a Court of the amount of compensation to be paid by a land lord to his tenant; or when presented to a Collector or other officer making a settlement of land revenue, or to a Board of Revenue, or a Commissioner of Revenue, relating to matters connected with the assessment of land or the ascertainment of rights thereto or interest therein, if presented previous to the final confirmation of such settlement; or one rupee and ten paise

When presented to any officer of land revenue
by any person holding temporarily settled land under direct
engagement with Government, and when the subject-matter of the
application or petition relates exclusively to such engagement.

When presented to any officer of land revenue
by any person the kabulyat application for settlement of land
under direct engagement with Government

Two rupees

(d) When presented to a Chief Commissioner or
other Chief Controlling Revenue or Executive Authority, or to a
Commissioner of Revenue or Circuit, or to any chief officer
charged with the executive administration of a Division and not
otherwise provided for by this Act

Three rupees and thirty paise

(e) When presented to a High Court

Fifty rupees

(i) under Article 226 of the Constitution

(ii) in all other matters

Ten rupees

(f) When presented to any officer containing
prayer for settlement of fishery, ferry, forest produce, forest
mahals, elephant mahals, or an officer giving terms for
acceptance of Government for any construction or an application
for a permit or licence to deal in controlled commodities

Eight rupees and twenty-five paise

(g) When presented to an Appropriate Revenue
Authority for demarcation of land-

(i) when the area of such land does not exceed
one hectare

Two rupees and twenty paise

(ii) for each subsequent area of one hectare or
part thereof

One rupee and ten paise.

2.

Application to any Civil Court that that
records may be called for from another Court
When the Court grants the application and is of
opinion the transmission of such record involves the use of the
post

One rupee and sixty-five paise in addition to
any fee levied on the application under Clause (a), Clause(c) or
Clause(e) of Article 1 of this Schedule.

3.

Application for leave to sue as a pauper

One rupee and ten paise.

4.

Application for leave to appeal as a pauper

(a) When presented to a District Court

Two rupees and twenty paise

(b) When presented to a commissioner or a High
Court

Three rupees and thirty paise.

5.

Plaint or memorandum of appeal in a suit to establish or disprove a right of occupancy

6.

Bail-bond or other instrument of obligation given in pursuance of an order made by a Court or Magistrate under any section of the Code of Criminal Procedure, 1898 (Act 5 of 1898) or the Code of Civil Procedure, 1908 (Act 5 of 1908) and not otherwise provided for by this Act
One rupee and ten paise.

7.

Undertaking under Section 49 of the Indian Divorce Act, 1869 (Act 4 of 1869).

8.

.....

9.

.....

10.

Mukhtarnama or Wakalatnama

When presented for the conduct of any one case-

(a) to any Civil or Criminal Court other than a High Court, or to any Revenue Court, or to any Collector or Magistrate, or other executive officer except such as are mentioned in Clauses (b) and (c) of this number.

One rupee and ten paise.

(b) to a Commissioner of Revenue, Circuit or Customs officer or to any officer charged with the executive administration of a Division, not being the Chief Revenue or Executive Authority

Two rupees and seventy-five paise.

(c) to a High Court, Chief Commissioner, Board of Revenue, or other Chief Controlling Revenue or executive authority or an appellate authority prescribed under the Motor Vehicles Act, 1939 (Act 4 of 1939) or to an appellate authority prescribed under the Assam Sales Tax Act, 1947 (Assam Act 17 of 1947).

Five rupees and fifty paise.

11.

Memorandum of appeal when the appeal is not from a decree or an order having the force of a decree, and is presented.

(a) to any Civil Court other than a High Court, or to any Revenue Court or executive officer other than the High Court or Chief Controlling Revenue or Executive Authority except an authority specified in Clause (b)

Three rupees and thirty paise.

(b) to an Excise Appellate Authority under Rule 340 of the Assam Excise Rules

Sixteen rupees and fifty paise.

(c) to a High Court or Chief Commissioner, or

other Chief Controlling Executive or Revenue Authority except an authority prescribed in Clause (b)

Eleven rupees.

(d) to an Excise Appellate Authority under Rule 341 of the Assam Excise Rules

Fifty-five rupees.

(e) to a High Court in Miscellaneous revenue matters except (f) below or to an appellate authority prescribed under the Motor Vehicles Act, 1939 (Act 4 of 1939); and

Sixteen rupees and fifty paise.

(f) to a High Court in appeal and revision matters arising out of settlement of fisheries-

(i) when the bid money is below ten thousand rupees

Sixteen rupees and fifty paise.

(ii) when the bid money is above ten thousand rupees but below twenty-thousand rupees

Twenty-seven rupees and fifty paise

(iii) when the bid money is above twenty thousand rupees

Thirty-three rupees.

12.

Caveat.

.....

Eleven rupees.

13.

Application under Act No. 10 of 1859, Section 26, or Bengal Act No. 6 of 1862, Section 9, or Bengal Act No. 8 of 1859, Section 37

Five rupees and fifty paise.

14.

Petition in suit under the Native Converts' Marriage Dissolution Act, 1866 (Act 21 of 1866)

Five rupees and fifty paise.

15.

.....

16.

.....

17.

Plaint or memorandum of appeal in each of the following suits-

(i) to alter or set aside a summary decision or order of any of the Civil Courts not established by Letters Patent or of any Revenue Court;

Sixteen rupees and fifty paise.

(ii) to alter or cancel any entry in a register of the names of proprietors of revenue-paying estates

(iii) to obtain a declaratory decree where no consequential relief is prayed

Twenty-two rupees

(iv) to set aside an award

Sixteen rupees and fifty paise

(v) to set-aside an adoption

Twenty-two rupees

(vi) every other suit where it is not possible

to estimate at a money-value the subject-matter in dispute, and

which is not otherwise provided or by this Act

Sixteen rupees and fifty paise.

18.

Application under Section 14 of Section 20 of

the Indian Arbitration Act, 1940 (Act 10 of 1940), for a

direction for filing an award or for an order for filing an

agreement

When presented to a Munsif's Court

Sixteen rupees and fifty paise.

When presented to any other Court

Fifty-five rupees

19.

Agreement in writing stating in question for

the opinion of the Court under the Code of Civil Procedure, 1908

(Act 5 of 1908)

Sixteen rupees and fifty paise.

20.

Every petition under the Indian Divorce Act,

1869 (Act 4 of 1869) except petitions under Section 44 of the

same Act, and every memorandum of appeal under Section 55 of the

same Act

Twenty-two rupees.

21.

Plaint or memorandum of appeal under the Parsi

Marriage and Divorce Act, 1865 (Act 15 of 1865)

Twenty-two rupees

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Translation